Judicial Practices and Procedures

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William J. Wallace, Judge
Karen M. Harris, Judicial Assistant

Contact Information
Mailing Address: Okeechobee County Judicial Center, 312 N.W. 3rd Street, Okeechobee, FL 34972
Physical Address: Okeechobee County Judicial Center, 312 N.W. 3rd Street, Okeechobee, FL 34972
Telephone: 863-763-3193
E-mail: harrisk@circuit19.org

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A. Communications with the Judicial Office

- **Method of Communication:**

  Judicial E-mail

  Communications to the judicial office may be submitted by e-mail to *harrisk@circuit19.org*. The subject line of any e-mail to the judicial office must contain the case number, case name, and relevant matter (e.g., 2024 DR 001234 SC – Doe v. Doe – 2-Hour Hearing Requested).

Telephone

Communications to the judicial office may be submitted by telephone call to *863-763-3193*. The judicial office does not accept text messages.

Self-represented litigants and attorneys excused from e-mail service may communicate with the judicial office by telephone call to *863-763-3193*. The judicial office does not accept text messages.

- **Ex parte Communications:**

  All communications with the judicial office must comply with Canon 3 of the Code of Judicial Conduct, which prohibits a judge from initiating, permitting, or considering ex-parte communications and from considering other communications outside the presence of the parties concerning a pending or impending proceeding, unless authorized by law. All parties must be copied on any e-mail directed to the judicial office, unless an ex-parte communication is authorized by law.

- **Unsolicited Communications:**

  Parties may only contact the judicial office in accordance with these practices and procedures. Unsolicited communications from non-parties will not be considered by the court.

- **E-Filing Portal Contact Information:**

  All attorneys and self-represented litigants must provide an e-mail address to receive signed orders electronically, unless excused. Fla. R. Gen. Prac. & Jud. Admin. 2.516. It is the responsibility of attorneys and self-represented litigants to update their contact information using Form 2.603 any time there is a change in the e-mail account registered for electronic service.

- **Response to Inquiries:**

  The judicial assistant is not authorized to provide legal advice.

  The judicial assistant strives to substantively respond to all inquiries within one business day. If the judicial assistant is unable to substantively respond within one business day, your message will be acknowledged as received with an indication of when to expect a substantive response and alternate contact for immediate assistance.

When the judicial assistant is out of the office, your message will be acknowledged and responded to as soon as possible.

- **Other Communication Procedures:**

  Any e-mail sent to or from the judicial office may be a public record subject to disclosure.

B. Scheduling Procedures

- **Court Schedule:**

  Trials are scheduled by the Court or request to the judicial assistant at harrisk@circuit19.org.

- **Scheduling Hearings:**

  Hearings must be requested by contacting the judicial assistant at *harrisk@circuit19.org*.

- **Notice of Hearing:**

  A notice of hearing must be filed and served immediately after reserving hearing time.

  A notice of hearing involving any remote appearance must list the judge's *Zoom* credentials which will be provided by the judicial assistant.

  All notices of hearing must contain the Americans with Disabilities Act (ADA) notification required by Florida Rule of General Practice and Judicial Administration 2.540.

- **Submission Deadlines:**

  The court must receive all materials for the hearing no later than *two (2) business days* before the hearing.

- **Order of Proceedings:**

  Matters will be heard in the order in which they appear on the docket unless otherwise decided by the Court.

  Matters involving parties represented by counsel will generally be heard before other matters.

- **Continuance Procedure:**

  Motions for continuance are disfavored and will be granted only upon good cause shown. Successive continuances are highly disfavored. Lack of due diligence is not grounds for granting a continuance. Except for good cause shown, the motion must be signed by the party requesting the continuance, as required by Florida Rule of General Practice and Judicial Administration 2.545(e).

- **Cancelling Hearings:**

  You must cancel hearings by notifying the judicial assistant immediately. You must also immediately file and serve a notice of cancellation on opposing counsel and any self-represented litigant.

- **Other Scheduling Procedures:**

  All Pre-Trial Conference are conducted in person. Cases must go to Mediation and Mediators are provided. If the case is not resolved, the case will be continued at the request of the parties or set for trial.

C. Remote Appearance

- **Remote Appearance Procedure:**

  The court maintains a hybrid virtual courtroom, allowing parties to appear either in person or remotely, as provided by Florida Rule of General Practice and Judicial Administration 2.530. Requests to use communication technology for an appearance must be made by motion.

- **Platform Used:**

  The court uses *Zoom* for remote appearances.

- **Platform Meeting ID#:**

  Contact the judicial assistant to obtain the platform meeting ID#.

- **Requirements:**

  Requests for remote appearance must be submitted within two (2) days prior to the hearing.

  Any person appearing remotely must be in a private location that is quiet and free from distractions. Under no circumstances will a

participant be permitted to appear remotely from a moving vehicle.

Any person appearing remote must dress and behave professionally in the same manner as if physically present in the courtroom.

Any person appearing remotely must enable the person's camera when joining the proceeding and keep the camera turned on until instructed otherwise by the court.

Any person appearing remotely must mute the person's microphone when joining the proceeding and keep the microphone turned off until instructed otherwise by the court.

If a witness appears remotely, the party calling the witness must ensure the witness has a functioning camera and microphone and has tested the internet connection before the hearing. The oath will be administered in accordance with Florida Rule of General Practice and Judicial Administration 2.530.

- **Technology Needs:**

  All participants in a remote hearing must have *Zoom technology requirements*.

  Technology specifications may be found at *Zoom.com*.

D. Submission of Orders and Judgments

- **Format:**

  Proposed orders may be submitted in Word and/or .pdf format and provided to opposing counsel and any self-represented litigant and stating that all parties agree to the order or contain a statement identifying any disagreement the parties may have as to the proposed order .

- **Submission Method:**

  Proposed orders may be submitted to the court by e-mail to *harrisk@circuit19.org* for parties.

  Attorneys and self-represented litigants excused from e-mail service shall submit proposed orders to the court by U.S. mail or hand-delivered to the judicial office.

Deadline for Submissions:

Proposed orders must be submitted no later than *ten (10)* days after any hearing unless otherwise directed by the court.

- **Other Procedures Relating to Submission of Orders and Judgments:**

  Proposed order and final judgment packages shall contain self-addressed stamped envelopes and copies for conforming.

E. Courtesy Copies of Case Law and Other Documents

- **When Required:**

  Courtesy copies of *Case Law and Other Documents* must be submitted to the court for any hearing or trial.

- **Format:**

  Courtesy copies must be submitted in a .pdf format.

  Courtesy copies must be submitted on 8.5 x 11-inch paper.

- **Submission Method:**

  Courtesy copies may be submitted to the court by e-mail to *harrisk@circuit19.org*.

  Courtesy copies may be submitted to the court by U.S. mail or hand-delivered to the judicial office.

  Self-represented litigants excused from e-mail service may submit courtesy copies to the court by U.S. mail or hand-delivery to the judicial office.

Deadline for Submissions:

Courtesy copies must be submitted to the court no later than *two (2)* days before any hearing or trial.

- **Other Courtesy Copies Procedures:**

  Courtesy copies shall be provided to opposing counsel and/or self-litigating parties.

F. Emergency and Other Urgent Matters

- **Requirements:**

  If a party believes there is a factual basis for setting an emergency hearing, a detailed motion setting forth the following must be filed: (1) the issues to be resolved, (2) reasons why an emergency hearing is necessary, and (3) the amount of time needed for each party's presentation.

- **Scheduling:**

  If the court determines that an emergency exists, a hearing will be scheduled unilaterally by the court. All parties shall make themselves available for the emergency hearing, barring exigent circumstances.

G. Exhibits for Evidentiary Proceedings

- **Submission Method:**

  Submit all exhibits electronically by e-mail to *harrisk@circuit19.org*.

  Hand-deliver or mail all printed exhibits to the clerk of court.

  E-mail all exhibits to the clerk of court at evidence@myokeeclerk.com. The Clerk of Court may also be reached at 863-763-2131 for further assistance.

- **Format:**

  Exhibits must be labeled in the following format: Plaintiff "A" Defendant "A".

  All attorneys and self-represented litigants must bring sufficient copies of each exhibit for the clerk, the court, and each party to review during the hearing or trial.

- **Deadline for Submissions:**

  Electronic exhibits must be submitted *five (5)* days before the evidentiary proceeding.

  All other exhibits must be received in chambers *five (5)* days before the evidentiary proceeding.

H. Pretrial Procedures and Conferences

- **Case Management Conference (CMC):**

  Any party may request a CMC when a case requires.

  The court strongly encourages the early use of CMCs in more complex cases, multiple-party litigation, or any case that might benefit from court intervention.

  Unless excused by the court in advance, all CMCs are mandatory for attorneys and self-represented litigants. Parties represented by counsel are not required to appear at a CMC.

- **Status Conference:**

  Any party may request a status conference when a case requires.

- **Requirements:**

  Any request for a CMC or status conference must articulate the reasons for the necessity of the conference.

- **Scheduling:**

  If the court grants the request for a CMC or status conference, the moving party must schedule the CMC or status conference pursuant to the procedures noted under the above Scheduling Procedures.

I. Setting Case for Trial

- **Procedure:**

  File a notice for trial to set the case for trial.

- **Notice Period:**

  The court sets date-certain trials. After the pre-trial conference, the court will assign a case to specific Trial date. Attorneys, self-represented litigants, parties, and witnesses are expected to be available.

J. Forms

- **Access:**

  Some Division forms are available for download at *www.circuit19.org* under Judge Wallace's webpage.

Florida Supreme Court approved forms are available at *www.supremecourt.flcourts.gov*

Other Forms may be accessed through the Okeechobee County Clerk's website at www.myokeeclerk.com.

- **Other Forms Procedures:**

  Use of Artificial Intelligence on Court filings shall be in accordance with Administrative Order 2025-10.

K. Other Division Procedures

- **ADA Accommodations:**

  Information on ADA accommodations can be found on the circuit's website at the following link: *www.circuit19.org*.

- **Interpreter Requests:**

  Information on interpreters' services can be found on the circuit's website at the following link: *www.circuit19.org.*

- **Other Division Procedures:**

  Please note: Court Interpreters and Court Reporters are NOT provided by the Court for Civil cases.